

FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

WAN HAI LINES, LTD., *Respondent*.

DOCKET NO. 26-06

Served: May 20, 2026

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (the “Commission”) by Samsung Electronics America, Inc. (the “Complainant”) against Wan Hai Lines, Ltd. (the “Respondent”). Complainant states that the Commission has subject-matter jurisdiction over this Complaint pursuant to the Shipping Act of 1984, 46 U.S.C. § 40301, *et seq.*, and personal jurisdiction over Respondent as a “common carrier” as defined in 46 U.S.C. § 40102(7)

Complainant is a corporation organized and existing under the laws of the state of New York with a principal place of business in Englewood Cliffs, New Jersey.

Complainant identifies respondent Wan Hai Lines, Ltd. as a company existing under the laws of Taiwan with its principal place of business located in Taipei, Taiwan, whose agent in the United States is Wan Hai Lines (USA) Ltd., an entity existing under the laws of the state of California with a principal place of business located in Scottsdale, Arizona.

Complainant alleges that Respondent violated 46 U.S.C. § 41102(c) and 46 C.F.R. §§ 545.4 and 545.5. Complainant alleges these violations arose from Respondent systematically requiring that Complainant be responsible for the payment of demurrage and detention charges incurred for

“store door” shipments, failing to engage in an adequate dispute resolution process regarding the charges, and other acts and omissions of Respondent.

An answer to the complaint must be filed with the Commission within 25 days after the date of service.

The full text of the complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/26-06/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by May 20, 2027, and the final decision of the Commission shall be issued by December 3, 2027.

David Eng
Secretary